

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Eric Murdy	Team: Squad #06	CCRB Case #: 201503051	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 04/21/2015 2:50 PM	Location of Incident: 69th Precinct Stationhouse	18 Mo. SOL 10/21/2016	Precinct: 69
Date/Time CV Reported Tue, 04/21/2015 3:36 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 04/21/2015 3:36 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Sekayi Babb	778	945409	069 PCT
2. POM Nico Hewitt	20530	922500	069 PCT
3. POM Duquai Pierre	01924	939228	069 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Anthony Sica	16031	953402	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Duquai Pierre	Discourtesy: PO Duquai Pierre spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Duquai Pierre	Force: PO Duquai Pierre used physical force against § 87(2)(b)	B . Exonerated
C . POM Nico Hewitt	Force: PO Nico Hewitt used physical force against § 87(2)(b)	C . Exonerated
D . POM Nico Hewitt	Discourtesy: PO Nico Hewitt spoke discourteously to § 87(2)(b)	D . Unsubstantiated
E . SGT Sekayi Babb	Force: Sgt. Sekayi Babb used physical force against § 87(2)(b)	E . Exonerated

Case Summary

On April 21, 2015, § 87(2)(b) filed this complaint by phone with the CCRB.

On April 21, 2015, at approximately 2:50 p.m., § 87(2)(b) went to the 69th Precinct Stationhouse to file a report regarding identity theft. § 87(2)(b) approached the desk and attempted to speak to an officer identified as PO Nico Hewitt. After he was unable to get PO Hewitt's attention he asked PO Duquai Pierre, who was walking past, for assistance. PO Pierre responded, "If you don't like how we run shit, then you can just leave" (**Allegation A**). PO Pierre and § 87(2)(b) engaged in an argument. § 87(2)(b) asked PO Pierre to step away, and as he did, PO Pierre uttered the word "fuck" (**within Allegation A**).

While in the waiting room area, § 87(2)(b) called the CCRB. As § 87(2)(b) provided PO Pierre's badge number, PO Pierre said, "Are you making a complaint against me? Who do you think you are? This is my precinct and you don't come here to make a complaint against me." PO Pierre then walked out from behind the desk, grabbed § 87(2)(b)'s right hand and pushed him out of the stationhouse (**Allegation B**). PO Hewitt then came over and also began to push § 87(2)(b) out of the stationhouse (**Allegation C**).

Once outside, PO Hewitt remained with § 87(2)(b). § 87(2)(b) asked to speak to a supervisor and PO Hewitt stated he would get one. § 87(2)(b) followed PO Hewitt back up the steps to the stationhouse, but PO Hewitt responded by pushing § 87(2)(b) and stating, "If you come up my fucking steps I'm going to arrest you for trespassing" (**within Allegation C and Allegation D**).

Eventually, Sgt. Sekayi Babb came outside, pushed § 87(2)(b) in the chest, and said, "Didn't they tell you to leave?" (**Allegation E**). § 87(2)(b) and Sgt. Babb argued, as she continued to tell him to leave. A group of officers gathered and PO Anthony Sica came over to separate Sgt. Babb from § 87(2)(b). § 87(2)(b) pointed at Sgt. Babb and told PO Sica she assaulted him, but Sgt. Babb slapped his hand down twice (**within Allegation E**). § 87(2)(b) was arrested for § 87(2)(a) 160.50 and was later released with a criminal summons (encl. 4d – 4e).

Mediation, Civil, and Criminal Histories

§ 87(2)(b)'s case was not eligible for mediation as he planned to file a lawsuit. On June 25, 2015, a Notice of Claim check was filed with the NYC Comptroller's Office but a response is pending (encl. 11a). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s fourth CCRB complaint. § 87(2)(b)
- § 87(2)(b)

- PO Pierre has been a member of the NYPD for nine years and has six prior CCRB complaints against him, none of which have been substantiated. § 87(2)(g)
- PO Hewitt has been a member of the NYPD for 16 years and has 11 prior CCRB complaints against him, one of which was substantiated. In CCRB case #201214768, a discourtesy allegation was substantiated against PO Hewitt and he was charged three vacation days. PO Hewitt has five additional prior discourtesy allegations, but they were all unsubstantiated (encl. 2b).
- Sgt. Babb has been a member of the NYPD for seven years and has two prior CCRB allegations, neither of which was substantiated. § 87(2)(g)

Allegations and Recommendations

Allegations Not Pleaded

- § 87(2)(g)

Allegation A - Discourtesy: PO Duquai Pierre spoke discourteously to § 87(2)(b)

Allegation D – Discourtesy: PO Nico Hewitt spoke discourteously to § 87(2)(b)

It is undisputed that on April 21, 2015, at approximately 2:50 p.m., § 87(2)(b) went to the 69th Precinct Stationhouse to file a report about identity theft. It is also undisputed that at some point § 87(2)(b) was told to leave the stationhouse, he refused to do so, and was eventually arrested and subsequently issued a summons for § 87(2)(a) 160.50.

According to § 87(2)(b) PO Hewitt was speaking with a woman at the desk while he waited to file his report. PO Pierre walked by and after § 87(2)(b) asked him if he was the only one who he could file a report with, PO Pierre told him, “If you don’t like the way we run shit, you can leave” (encl. 4d). Once outside he asked PO Hewitt if he could speak with a supervisor. PO Hewitt said he would get one and turned to go back inside. § 87(2)(b) began to follow, but PO Hewitt pushed him back while saying, “If you come up my fucking steps, I’m going to arrest you for trespassing” (encl. 4d-4e).

Based on PO Pierre’s testimony, § 87(2)(b) initiated the yelling towards PO Pierre for 30 seconds. PO Hewitt responded to assist given that due to a hand injury, PO Pierre would have been prevented from physically defending himself should the situation turn physical. As soon as PO Hewitt assisted to escort § 87(2)(b) out of the building, PO Pierre returned to the desk. PO Pierre denied using any discourteous language towards § 87(2)(b) (encl. 5c) and this was corroborated by PO Hewitt and Sgt. Babb (encl. 7e and 8d). PO Hewitt also denied using any discourteous language towards § 87(2)(b) while outside the stationhouse (encl. 7e).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and D** be closed as *unsubstantiated*.

Allegation B – Force: PO Duquai Pierre used physical force against § 87(2)(b)

Allegation C – Force: PO Nico Hewitt used physical force against § 87(2)(b)

Allegation E – Force: Sgt. Sekayi Babb used physical force against § 87(2)(b)

It is undisputed that PO Pierre ordered § 87(2)(b) to leave the stationhouse and § 87(2)(b) refused to do so. After being escorted out of the building, § 87(2)(b) attempted to follow PO Hewitt back into the stationhouse. It is also undisputed that while waiting immediately outside of the stationhouse, § 87(2)(b) approached Sgt. Babb and engaged in an argument over his ability to re-enter the stationhouse in order to file his report. He was repeatedly told to leave the premises and refused to do so. He made a waving motion in the direction of Sgt. Babb's face and was eventually arrested for § 87(2)(a) 160.50.

Only the amount of force necessary to overcome resistance will be used. Patrol Guide Procedure, 203-11 (encl. 1a).

§ 87(2)(b) alleged that PO Pierre came out from behind the desk, grabbed his arm, and pushed him out of the stationhouse. PO Hewitt came over and pushed him out of the building as well. Once outside, PO Hewitt pushed § 87(2)(b) back after the latter tried to follow him up the outside steps and back into the stationhouse.

According to PO Pierre, after § 87(2)(b) yelled in his face for approximately 30 seconds, PO Hewitt escorted § 87(2)(b) out of the building. PO Pierre denied pushing § 87(2)(b) or seeing PO Hewitt do so. PO Hewitt corroborated PO Pierre's testimony that PO Pierre ordered § 87(2)(b) out of the building. Once PO Hewitt assisted § 87(2)(b) he willingly walked out of the stationhouse without any physical contact from an officer. PO Hewitt also denied pushing § 87(2)(b) while on the steps of the stationhouse (encl. 7e).

After waiting outside for a supervisor, § 87(2)(b) alleged that he was repeatedly pushed backward and told to leave by Sgt. Babb. § 87(2)(b) also claimed that Sgt. Babb slapped his hand down twice while he pointed towards the officers grouped around him.

§ 87(2)(g). Once she went outside, Sgt. Babb was suddenly confronted by § 87(2)(b). Sgt. Babb asked, "Didn't they tell you to leave?" § 87(2)(b) was argumentative and stated, "Well, I need this report done. I don't give a fuck. I need this done." Sgt. Babb told him she was not going to go against what PO Pierre said and told him he had to go. § 87(2)(b) refused to leave and stood in a way that indicated he was not going to move. Sgt. Babb began to walk towards him to force him down the stairs, but did not push or make any contact with him.

When they were approximately 150 feet away from the stationhouse, § 87(2)(b) made a waving motion, pointing towards Sgt. Babb's face, coming within one to two inches. Sgt. Babb brushed his hand away and said, "Do not do that. I'm asking you nicely to help yourself and just leave." § 87(2)(b) continued to slowly walk backwards, but screamed, "No, fuck you! You fucking bitch!" This drew a crowd of 25-30 people from street and 10 officers from the stationhouse. PO Sica came over and Sgt. Babb instructed him to arrest § 87(2)(b) (encl. 8d).

PO Sica also stated § 87(2)(b) screamed the top of his lungs, drawing a crowd. PO Sica said he was actually the one who pushed § 87(2)(b)'s hand down when he almost hit Sgt. Babb. PO Sica tried to tell § 87(2)(b) to leave, but he refused. At this time, PO Sica asked for ID so he could issue § 87(2)(b) a summons for disorderly conduct. When he refused to provide it, PO Sica arrested § 87(2)(b) without incident. Twenty minutes later, § 87(2)(b) was released with a criminal summons (encl. 6g).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) _____ Therefore, it recommended that
Allegations B, C, and E be closed as ***exonerated***.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date